

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MUB MIXED-USE BUSINESS EMPHASIS FOR A PORTION OF THE SE¼ OF SECTION 33, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO SPARKS ROAD, WEST OF RIDGE ROAD).

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 15, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of the SE¼ of Section 33, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (more particularly described as follows: Commencing at the Southeast corner of said Section 33, being a found aluminum cap monument; thence N0°07'31"E along the east line of said Section 33, 1957.51 feet to a set 1½" aluminum cap marked IME, PLS 5134, herein after referred to as a typical monument, at the southwest corner of Block 2, McCann Addition and the POINT OF BEGINNING of this parcel description; thence from said Point of Beginning continue N0°07'31"E along said east line 562.11 feet to a found aluminum cap monument on the south right-of-way line of East Lincolnway; thence westerly along said southerly right-of-way line on an arc of a non-tangent curve to the right 407.62 feet to a typical monument, said curve having a radius of 3969.83 feet, central angle of 5°52'59" and chord bearing S87°12'51"W, 407.44 feet; thence N89°44'15"W along said southerly right-of-way line, 141.96 feet to a found aluminum cap monument at the northeast corner of Lot 2, Block 1, Physician's Medical Park Subdivision; thence S0°06'42"W along the east line of said Physicians Medical Park Subdivision, 672.92 feet to a found aluminum cap monument; thence S45°32'33"W along the east line of said Physicians Medical Park Subdivision, 74.23 feet to a found aluminum cap monument at the southeast corner of Lot 3, Block 1, of said Physicians Medical Park Subdivision being on the northeasterly right-of-way line of Henderson Drive; thence S44°33'04"E along said northeasterly right-of-way line, 256.08 feet to a found iron pipe on the northwesterly right-of-way line of Nationway Highway; thence northeasterly along said northwesterly right-of-way line on an arc of a non-tangent curve to the left, 15.21 feet, said curve having a radius of 3669.73 feet, central angle of 0°14'15", and chord bearing N50°30'25"E, 15.21 feet; thence N49°10'18"E along said northwesterly right-of-way line, 542.64 feet to the Point of Beginning, containing 9.60 acres, more or less) is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Hawk's Point Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00155 **SUBDIVISION CODE:** <unplatted>

PREPARED BY: Seth Lloyd

MEETING DATES:	Planning Commission:	June 15, 2020	
	City Council:	June 22, 2020	1 st Reading
	Public Service Committee:	July 7, 2020	
	City Council:	July 13, 2020	2 nd Reading
	Public Service Committee:	July 21, 2020	
	City Council:	July 27, 2020	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map & Checklist; Draft Neighbor Notification Letter; Neighbor Notification List
- Neighbor Notification Letter – received 5/19/2020 (sent to demonstrate compliance with notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on June 15, 2020, the City of Cheyenne Planning Commission recommended approval of the zone change request from CB Community Business to MUB Mixed-Use Business Emphasis by a vote of 5-0.

STAFF RECOMMENDATION: The Development Department recommends approval of the zone change request from CB Community Business to MUB Mixed-Use Business Emphasis.

STAFF REPORT

Hawk's Point Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00155 **SUBDIVISION CODE:** <unplatted>
PREPARED BY: Seth Lloyd
PUBLIC HEARING: June 15, 2020 (Planning Commission)

OWNER: Section 20, LLC (307) 634-4577
2220 Del Range Blvd, Suite 100 fmc999@aol.com
Cheyenne, WY 82009

AGENT: Daniel J. Hayes, P.E. (307) 635-6827
350 Parsley Blvd. dhayes@inberg-miller.com
Cheyenne, WY 82009

PROJECT: Hawk's Point Zone Change

WORK DESCRIPTIONS: A zone change request from CB Community Business to MUB Mixed-use Business Emphasis for unplatted land south of and adjacent to Sparks Road, west of Ridge Road, to be platted as Hawk's Point Subdivision

LOCATION:

1. Legal Description: A portion of the SE¼, Section 33, T14N, R66W, 6th PM, Cheyenne, Laramie County, Wyoming
2. Location: South of and adjacent to Sparks Road, west of Ridge Road
3. Address: <unaddressed>

SIZE: 9.6 acres

CURRENT ZONING: CB Community Business
PROPOSED ZONING: MUB Mixed-Use Business Emphasis
EXISTING LAND USE: Vacant
PROPOSED LAND USE: Multifamily (Senior Housing), other future development

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential, Assembly, Outdoor Sales	LR, PUD, CB	City
South	Residential, Assembly	NB, P, MR	City
East	Lodging, Retail	CB	City
West	Office, Medical Office	CB	City

EXECUTIVE SUMMARY:

This zone change application proposes changing the zoning of unplatted, undeveloped land between Lincolnway and Nationway from CB Community Business to MUB Mixed-Use Business Emphasis. This property is located west of Ridge Road. The specific proposal associated with this application is to develop a portion of the property with a multi-family use. Multi-family is prohibited in the current CB zone. The remainder of the property has no specific development proposals at this time, but zoning to MUB would allow either residential or commercial uses in the future.

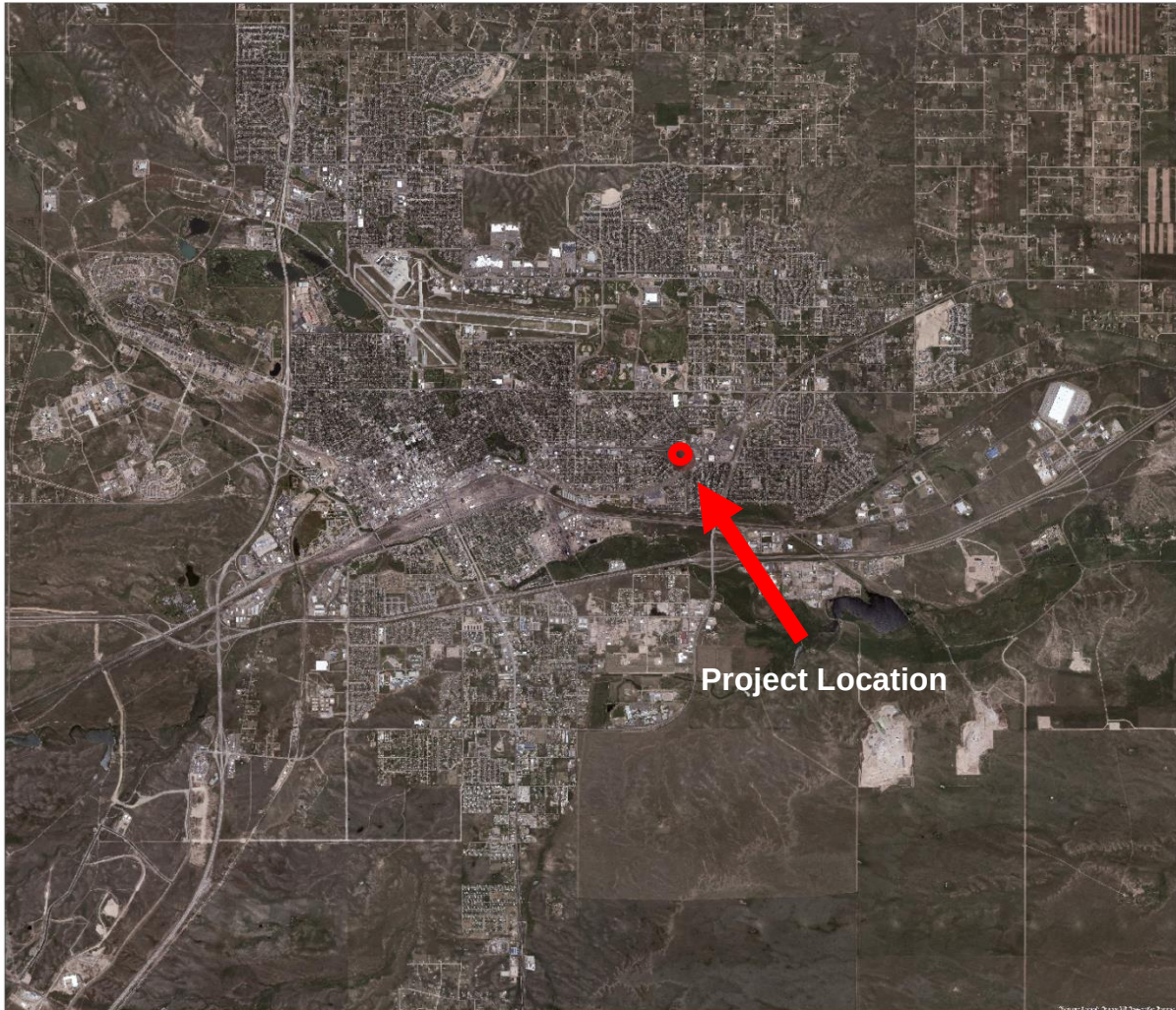
The current Future Land Use designation for the property is Community Business, and the optimal zone for that designation is the current CB Community Business zone. However, a petition to amend the Future Land Use Map has been submitted and is being processed concurrently with this application. The proposed designation is Mixed-use Commercial, and the MUB zone is the suggested zone for the Mixed-use Commercial designation. Principles and policies in PlanCheyenne encourage MUB zoning at this location. These policies encourage increasing housing options in the community and higher-density housing near transportation corridors and commercial activity centers. By zoning this property MUB, higher-density housing would be allowed in this area of the community.

Due to the surrounding development patterns, there is limited opportunity for this project to provide the highly connected, smaller block pattern encouraged for areas zoned MUB. However, there may be an opportunity to create a connection between Lincolnway and Nationway.

The proposed MUB zoning is compatible with the surrounding area considering the existing zoning and the comprehensive plan's policies for the area. The proposed MUB zoning allows many of the same commercial uses as the nearby CB zoning. MUB zoning also allows for multifamily residential development – which is an anticipated component of activity centers according to the Comprehensive Plan.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

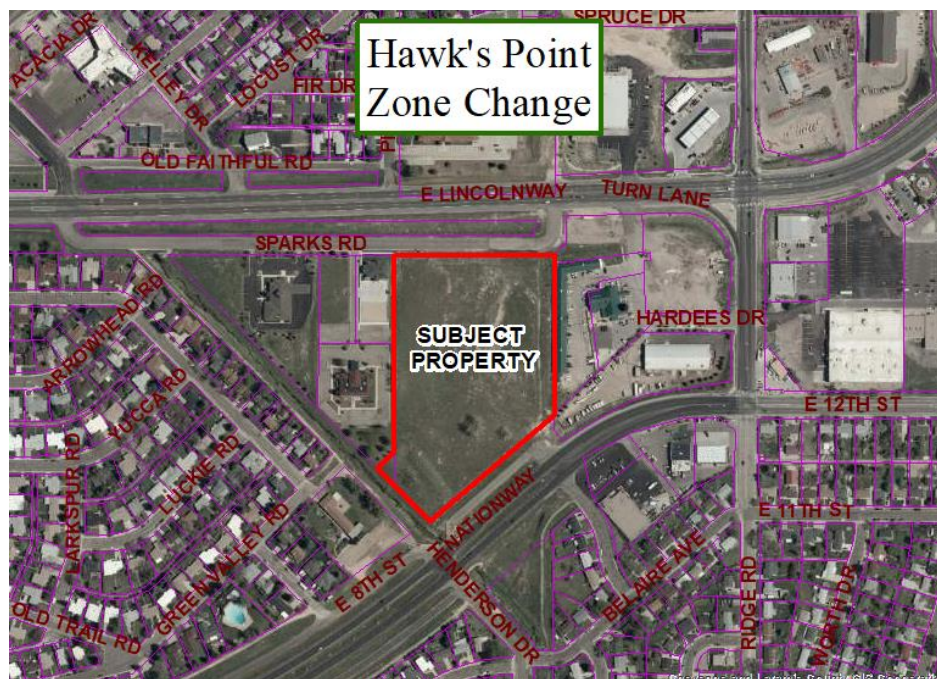
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located between Lincolnway and Nationway, west of Ridge Road.
Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from Sparks Road, facing south
Source: Development Office



Photograph #2 – Image of the subject property from the intersection Nationway and Mulberry Avenue, facing north
Source: Development Office

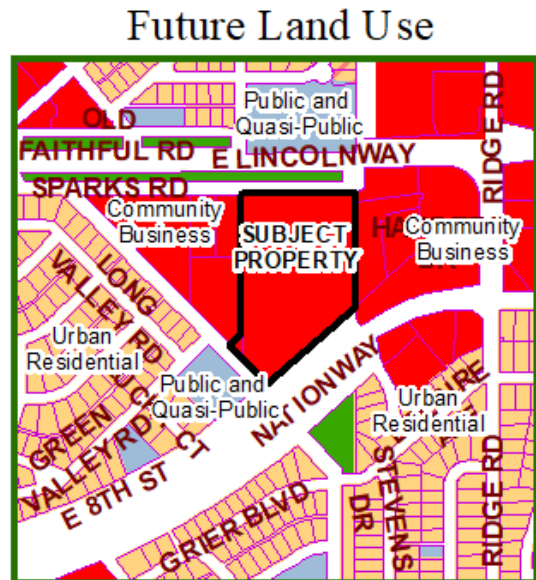
ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

1. **PLANCHEYENNE** - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is partially supportive of this zone change.

The future land use map currently identifies the subject property, and most of the surrounding parcels, as Community Business. The Community Business designation is expected to primarily develop with regional serving retail and office uses. Service uses are also appropriate. Secondary uses include open space, recreation, civic, and multifamily residential.

While the current CB Community Business zone is considered the optimal zone for this future land use designation, it does not allow for the secondary use of multi-family residential. The proposed MUB zone still allows a range of commercial uses – including the retail, office, and service uses considered optimal by the future land use map designation. However, the MUB zone would also allow a broader range of residential uses than just the multi-family considered by the current future land use designation.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

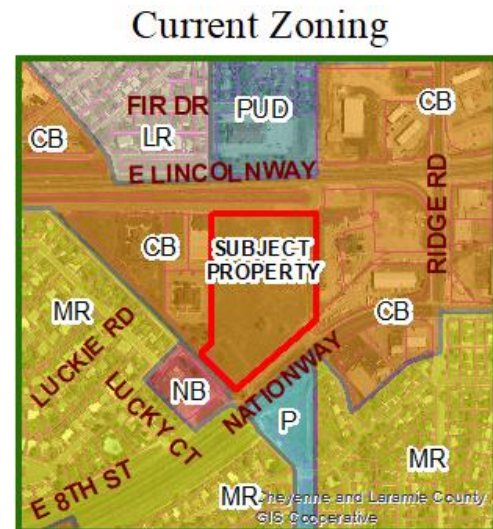
Principles and policies within the Comprehensive Plan support the zone change. Principle 1.1 encourages a balanced mix of uses and flexibility to respond to market demands – noting that the Future Land Use Map is a guide, not a predeterminer of specific uses or zones. Policy 1.3.b encourages a mix of housing types, densities, and unit sizes. Policy 2.3.b encourages higher density and senior housing near or within activity centers and adjacent to transportation corridors, and MUB zoning at this location would allow for higher-density housing in this area of the community, which is near major transportation corridors and an activity center. Principle 2.5 encourages the provision of housing throughout the community, and by changing the zoning to MUB at this location, more locations for potential housing development are provided.

A concurrent petition has been submitted requesting an amendment the Future Land Use Map for the subject property, changing the future land use designation to Mixed-use Commercial. The optimal zoning for the proposed future land use designation is the MUB zone. If the Future Land Use Map amendment is approved, then the MUB zoning of this property is highly compatible with PlanCheyenne.

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- 2. SURROUNDING AREA** - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The proposed MUB zoning is compatible with the surrounding area considering the existing zoning and the comprehensive plan's policies for the area. The proposed MUB zoning allows many of the same commercial uses as the CB zoning (although more intense uses may be subject to a higher standard of review). MUB zoning also allows for multifamily residential development, which is an anticipated component of commercial activity centers according to the comprehensive plan.

The properties to the east and west of this proposed zone change are currently zoned CB Community Business and are largely developed with Community Business – style development patterns. The current CB zoning links these developed properties and creates a large swath of CB zoning, though this specific parcel has not yet been developed.



Map #4 – Zone Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

Land to the north of this proposed zone change is zoned LR Low-density Residential and developed with residential and assembly (church) uses. Land to the southeast is also developed with a residential neighborhood (with MR Medium-density Residential and P Public zoning) – but both of these residential neighborhoods are separated from the subject property by wide rights-of-way. To the southwest, another largely residential neighborhood is separated from the subject property by a drainage swale.

The current Future Land Use Map designates this area as Community Business and anticipates largely commercial uses and zoning. However, policies within the plan support the proposed zone change and an amendment to the Future Land Use Map is proposed for the subject property.

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- 3. ZONING: BASIC STANDARDS & USES** - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

The current CB Community Business zoning allows a wide variety of commercial uses, but does not allow any residential uses. The CB zone generally has a lower level of design standards than MUB zoning. The MUB zone allows a broader mix of uses, including most types of residential uses, but is a little more limiting on intensity of commercial uses. The proposed MUB zoning also encourages structures to be built closer to the street with higher design standards.

4. STREETS & OPEN SPACE - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The MUB zoning is intended to have a highly connected street network with smaller blocks. Due to the surrounding development patterns, there is limited opportunity for this project to provide the block pattern encouraged for areas zoned MUB. However, there may be an opportunity to create a connection between Lincolnway and Nationway at this site. The applicant is seeking to rezone the land in conjunction with a platting action. The proposed plat would be analyzed for compliance with subdivision standards.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUB zone is intended to have a diverse mix of uses in a compact development pattern. Uses are intended to be integrated with smaller, walkable blocks. The MUB zone is also intended as an alternative to CB zoning for a commercial activity center. The subject property is surrounded by development and has limited opportunity to create the highly-connected, smaller blocks encouraged by MUB zoning. However, there is an opportunity to provide connection between Lincolnway and Nationway through this site.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The specific development associated with this proposed zone change is a multi-family development on a small portion of the property. Future development and uses of a majority of the property have yet to be determined. The applicant is seeking the rezoning for the entire property with the expectation of developing other portions of the property in the future. Such future development could include either commercial or residential components, and the proposed zoning of MUB allows either option. Should the specifically-proposed development not be executed, future development on that portion of the parcel would have a similar variety of use options.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

The following agencies were assigned to review this proposal: Community Recreation and Events, Engineering, Metropolitan Planning Organization, Planning and Development, and the Wyoming Department of Transportation.

Reviewing Agencies with Comments:

- Metropolitan Planning Organization
 - o **(FYI)** In future development of this plat, it would be nice to remove the partial service road along Nationway.
 - o **(FYI)** The future roadway through this development can possibly tie to the intersection of Mulberry Ave & Nationway.
 - o **(FYI)** There is a need to see curb, gutter and sidewalk along Sparks Rd and sidewalks to connect between current site and connections to future sites.
- Planning and Development
 - o **(FYI)** Zone district is CB, with no MUB in the near vicinity. There is existing residential uses adjacent along the southwesterly and southeasterly boundary. Multi-family may be a good transition between existing commercial and residential uses.
 - o **(FYI)** This zone change is accompanied by an update to the Future Land Use Map in PlanCheyenne. If the update to the Future Land Use Map is adopted, the zone change will be in conformance with the Comprehensive Plan. Staff is supportive of the update to the Future Land Use Map to accommodate this zone change. The zone change has been requested to permit the construction of multi-family housing and a mix of uses on an infill development site, accomplishing several goals within PlanCheyenne.
 - o **(FYI)** MUB zoning for this property is only partially supported by the Future Land Use Map. The Community Business future land use designation does consider multi-family residential as an acceptable secondary use, and the current CB zoning would not allow residential uses. However, the Comprehensive Plan does have principles and policies which support amending the map and the proposed zone change (ref: 1.1.B, 1.3.b, 2.3.b, 2.5.a, and the comparison of the description of the Mixed-use Commercial Emphasis versus the description of the Community Business Future Land Use designations).
 - o **(FYI)** The subject property meets the intent and applicability of both the CB and MUB zones.
 - o **(FYI)** The land is currently vacant and unplatted - lot types would be determined at platting action.
 - o **(FYI)** MUB zoning requires new non-residential development to meet design standards of 6.7.

All other reviewing agencies did not provide Comments.

Other Comments Received:

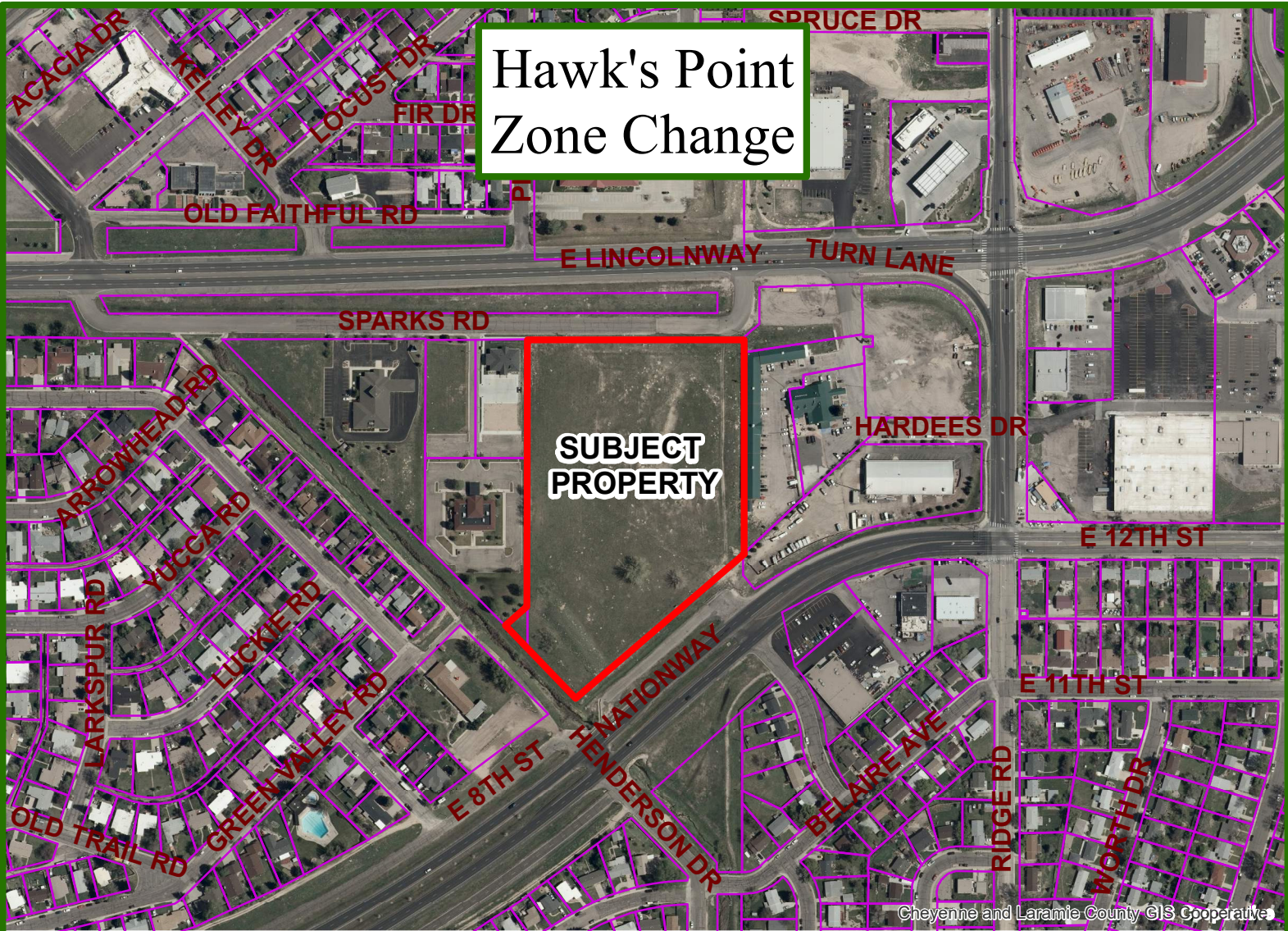
- None.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Cc: Owner, Agent/Applicant, File

Hawk's Point Zone Change

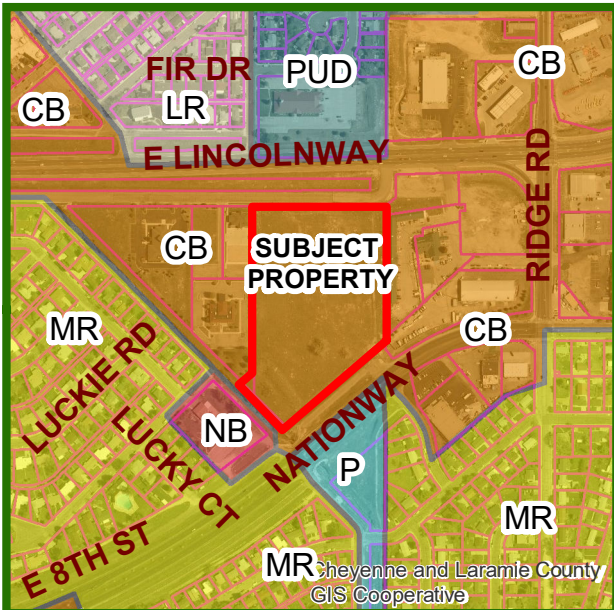


Application Number
Zone Change
UDC-20-00155

Applicant: Ingberg-Miller
Daniel Hayes, PE
Owner: Section 20, LLC
Frank Cole

0 400 800
Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

